

File No.: EXP202212597

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On October 6, 2022, a complaint was filed with entry registration number REGAGE22e00048297003 before the Spanish Agency for Data Protection against the company BINANCE SPAIN, S.L. (hereinafter, the complained party). The reasons on which the complaint is based are as follows:

According to the complainant, they attempted to exercise the right to erasure of their data and the cancellation of their account with the complained party, for which the latter required them to take a selfie showing their identity card and a handwritten document with a series of instructions, which they consider to be a disproportionate requirement to exercise their right.

On July 11, 2022, the complainant contacted the Data Protection Officer (hereinafter, DPO) of the complained party via their email address. The DPO responded to the complainant on July 13, 2022, indicating that to exercise their right to erasure, it was sufficient to reply to that same email writing: "I want to delete my account." The complainant did so, and on July 18, 2022, they received an SMS from the complained party urging them to enter the application and check a notification. In that notification, they were again asked for a selfie if they wanted to delete their account and personal data.

On August 20, 2022, the complainant sent another email to the DPO of the complained party attaching a photocopy of their ID so that the erasure of their personal data and the cancellation of their account could be carried out. However, they did not receive a response from the DPO or the complained party to this email.

SECOND: On January 6, 2023, in accordance with the provisions of Articles 65 and 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the present complaint was understood to be admitted for processing.

THIRD: On February 16, 2023, it was agreed to refer the complaint to the control authority of Ireland, considering it competent for the processing of the file by virtue of Article 56.1 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter GDPR).

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigation actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Investigation Actions

Article 67 of the LOPDGDD, in the wording in force at the time of the admission agreement of the present procedure, establishes the following regarding preliminary investigation actions:

“1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigation actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure. The Spanish Agency for Data Protection will act in any case when it is necessary to investigate treatments that involve massive traffic of personal data.

2. The preliminary investigation actions will be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and will not...

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may have a duration exceeding twelve months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of the communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

III

Expiration of Proceedings

In relation to the preliminary proceedings, the Development Regulation of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose, or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 states that “The expiration of the term without a decision having been issued and notified to initiate sanctioning proceedings will result in the expiration of the preliminary proceedings.”

In accordance with the provisions of the transcribed articles, and in accordance with Article 67.4 of the LOPDGDD in its wording in force on the date of admission of the complaint, the preliminary proceedings must be understood as expired if, after more than twelve months counted from the date of admission of the complaint, no decision has been issued and notified to initiate sanctioning proceedings.

In the present case, the computation of the twelve-month maximum duration of the preliminary investigation proceedings began on January 6, 2023, with the expiration period suspended for one hundred and forty days, by virtue of Article 64.4 of the GDPR, from February 16, 2023, the date on which it was agreed to refer the complaint to the supervisory authority of Ireland, considering it competent for the processing of the file by virtue of Article 56.1 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), (hereinafter GDPR), as indicated in the third fact of this resolution, until July 6, 2023, the date on which the response from the Irish supervisory authority SA Ireland (Data Protection Commission (DPC)) was received in the AEPD registry, through the European Commission Internal Market Exchange Systems, therefore these preliminary investigation proceedings must be declared expired from May 25, 2024, currently pending completion.

IV

Initiation of New Investigation Proceedings

On the other hand, Article 95.3 of the aforementioned LPACAP states that:

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“Expiration will not in itself produce the prescription of actions by the individual or the Administration,

but expired proceedings will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had expiration not occurred may be incorporated into it. In any case, the new procedure must complete the procedures for allegations, proposal of evidence, and hearing of the interested party.”

In this regard, the National Court, in its judgment of July 10, 2013 (JUR 2013\259250), considers that “the declaration of expiration of the preliminary investigation proceedings initiated by the Spanish Agency for Data Protection does not prevent that entity from initiating or restarting other preliminary investigation proceedings on the same facts, as long as the prescription period for the administrative infringement under investigation has not elapsed.”

In the present proceedings, the investigation has proven to be a process of enormous complexity both from a technical point of view and due to the volume of documentation that must be analyzed and studied.

Furthermore, it has been necessary to conduct a thorough investigation to determine the competence of the Spanish Agency for Data Protection since the data controller maintained activities in various countries of the European Union, and it was necessary to establish certainty regarding the eventual existence of a permanent establishment for the application of the criteria for the distribution of competences among supervisory authorities.

Consequently, since the facts under investigation are not prescribed, instructions are given to the General Subdirectorate of Data Inspection to initiate new investigation proceedings.

Therefore, in accordance with the aforementioned, by the director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigation proceedings.

SECOND: TO OPEN new investigation proceedings and incorporate into these new proceedings the documentation that integrates the preliminary proceedings declared expired by this act.

THIRD: TO NOTIFY this Resolution to BINANCE SPAIN, S.L. and to the complainant.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions established in Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may file, optionally, a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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